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**Tentative Ruling**

Re: **Krick v. Fresno County Sheriff's Department**  
Superior Court Case No. 24CECG00822

Hearing Date: July 28, 2026 (Dept. 502)

Motion: Judgment on the Pleadings

**If oral argument is timely requested, it will be entertained on  
Thursday, July 30, 2026, at 3:30 p.m. in Department 502.**

**Tentative Ruling:**

To grant defendant's motion for judgment on the pleadings, with plaintiff granted 10 days' leave to amend. (Code Civ. Proc., § 438, subd. (c)(1)(A).) The time in which the Complaint may be amended will run from service of the order by the clerk.

**Explanation:**

Plaintiff filed a Personal Injury Judicial Council form complaint. He checked box 10(f), identifying the cause of action as defamation of character, for which he seeks \$5m in damages.

Use of the Judicial Council form complaint requires the use of attachments for alleging the causes of action. Paragraph 10 of the form pleading states, "[t]he following causes of action are attached and the statements above apply to each (*each complaint must have one or more causes of action attached*): ..." The plaintiff is to check the box indicating the causes of action being alleged, and add to the form complaint attachments alleging the elements and facts pertinent to each cause of action. Having failed to include any cause of action attachments, the complaint fails to state facts sufficient to state any cause of action. (Code Civ. Proc., § 430.10, subd. (e).)

Moreover, the Complaint fails to plead compliance with claim presentation requirements.

No suit may be brought against a public entity until a written claim has been presented to the public entity and has been acted upon by the Board, or has been deemed to have been denied by the Board. (Gov. Code, § 945.4.) The claim filing requirement applies to any lawsuit for damages against government entities. (Gov. Code, §§ 911.2, 950.2, 945.4.) The failure to plead compliance with the Government Claims Act bars the plaintiff from bringing a suit against that entity and its employees. (*Id.*, §§ 945.4 and 950.2; *State v. Superior Court* (2004) 32 Cal.4th 1234, 1237.) Compliance with the claims presentation requirement is an element of plaintiff's cause of action. (*Id.* at p. 1240.) A government tort claim pertaining to personal injury must be presented "not later than six months after the accrual of the cause of action." (Gov. Code, § 911.2, subd. (a).)

The motion must be granted because the Complaint fails to plead compliance with the Government Claims Act. For that reason alone the motion must be granted. The

court can also take judicial notice of facts showing that plaintiff failed to comply with the Government Claims Act. (See *Fowler v. Howell* (1996) 42 Cal.App.4th 1746, 1750 [taking judicial notice of absence of a claim in the State Board of Control's records].) Defendant contends that a claim submitted by plaintiff to Fresno County on November 25, 2024 applies to this action, and the notice of untimely filing sent to plaintiff on December 6, 2024. However, given the complete lack of any factual allegations in the Complaint, the court cannot determine when the cause of action arose, or whether the claim submitted by plaintiff pertains to this action. Accordingly, leave to amend is granted to permit plaintiff to allege compliance with the claim presentation requirement, if he can.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

**Tentative Ruling**

**Issued By:**          **on**     7-24-26     .  
(Judge's initials) (Date)